The Department of State

bulletin

SAN FRANCISCO CONFERENCE ON JAPANESE PEACE TREATY:

Opening address by President Truman 447
Statements by Secretary Acheson 450, 459
Statement by John Foster Dulles 452
Rules of Procedure 459
Answer to Soviet Objections to the Treaty 461

U. S. AND JAPAN SIGN SECURITY TREATY:

Statement at the Signing and Text of Treaty 463

LAND REFORM PROBLEM CHALLENGES FREE WORLD • *Statement by Isador Lubin* 467

INTER-AMERICAN ECOSOC MEETING SEEKS SOLUTION OF HEMISPHERE ECONOMIC PROBLEMS • *By Assistant Secretary Miller* 475

For index see back cover

Vol. XXV, No. 638

September 17, 1951

The Department of State bulletin

VOL. XXV, No. 638 • PUBLICATION 4362

September 17, 1951

The Department of State BULLETIN, a weekly publication compiled and edited in the Division of Publications, Office of Public Affairs, provides the public and interested agencies of the Government with information on developments in the field of foreign relations and on the work of the Department of State and the Foreign Service. The BULLETIN includes selected press releases on foreign policy issued by the White House and the Department, and statements and addresses made by the President and by the Secretary of State and other officers of the Department, as well as special articles on various phases of international affairs and the functions of the Department. Information is included concerning treaties and international agreements to which the United States is or may become a party and treaties of general international interest.

Publications of the Department, as well as legislative material in the field of international relations, are listed currently.

For sale by the Superintendent of Documents
U.S. Government Printing Office
Washington 25, D.C.

PRICE:
52 issues, domestic $7.50, foreign $10.25
Single copy, 20 cents

The printing of this publication has been approved by the Director of the Bureau of the Budget (July 29, 1949).

Note: Contents of this publication are not copyrighted and items contained herein may be reprinted. Citation of the DEPARTMENT OF STATE BULLETIN as the source will be appreciated.

Answer to Soviet Charges Against Japanese Treaty

John Foster Dulles, consultant to the Secretary, upon request from the New York *Times*, made on September 3 the following answers to the principal charges that have been made by the Soviet Union concerning the preparation and content of the proposed Japanese treaty:

I

Charge: The treaty was drawn up unilaterally by the United States, without the participation of the U. S. S. R.

Answer: The Soviet Union has actively, but unconstructively, participated in the treaty-making process. A year ago we gave the Soviet Union our statement of proposed treaty principles. I discussed them at length with Mr. Malik, the Soviet Deputy Minister of Foreign Affairs, on October 26, 1950, November 20, 1950, and January 13, 1951. He put many questions and I answered them on behalf of the United States. Two official aide memoires were exchanged between us.

The first United States draft of treaty (March, 1951) was promptly transmitted to the Soviet Union for its comments. Extensive comments were made by a Soviet note of May 7, 1951, which also at that time set forth the Soviet Union's own "proposals" for a Japanese peace treaty.[1] These were fully and publicly debated. The United States gave its views on May 19, 1951.[2] The Soviet Union then, on June 10, 1951, submitted another note rearguing its "proposals." The United States, after consulting with some others, replied on July 9, 1951.[3] These notes have all been made public.

Meanwhile, we gave the Soviet Union the July 3 draft of treaty with a request for its further observations. The final August 13 draft was given the Soviet Union, as in the case of other Allied Powers. The Soviet Union cannot deny "participation" in the treaty-making process except by reversing the usual sense of words.

II

Charge: This treaty was drafted in violation of a pledge by the United States, in the Potsdam Declaration and other international agreements, to negotiate the peace treaties, first of all, through the Council of Foreign Ministers (United States, Britain, U. S. S. R., France, and China).

Answer: There was never any agreement to negotiate the Japanese peace treaty through the Council of Foreign Ministers. The council was established on August 2, 1945, to deal with the European treaties. Japan was not mentioned. This was at the desire of the Soviet Union, which was then neutral in the Japanese war. It was provided that the council could deal with "other matters" than those mentioned, but only "by agreement between the member Governments."

The Soviet Union has persistently tried to get agreement that the Japanese peace treaty be put into the Council of Foreign Ministers; but the United States and other members, of the council have consistently refused to agree. They were unwilling to subject Japanese treaty making to the veto which the Soviet Union has in the council and which has, for 5 years, frustrated the possibilities of a German peace treaty and an Austrian treaty.

III

Charge: The treaty violates the 1942 declaration by the United Nations—under which each Government pledged itself "not to make a separate armistice or peace with enemies."

Answer: The expressed purpose of the United Nations declaration of January 1, 1942, was to assure "complete victory." Each Government pledged itself to employ its "full resources" against those members of the Axis "with which such Government is at war" and "not to make a separate armistice or peace with the enemies." That language was carefully chosen to leave the Soviet Union free as regards Japan, for the Soviet Union was not "at war" with Japan nor was Japan one of its "enemies."

The Soviet Union now claims retroactively the benefit of that declaration as regards Japan. Even if this claim is valid it does not mean that the Soviet Union can veto the proposed peace as a now prohibited "separate armistice or peace." The purpose of "complete victory" was achieved, 6 years ago. Certainly, the agreement never intended, after victory, to give each of the 47 parties a continuing, perpetual right to prevent all others from ever making peace with Japan.

An overwhelming majority of the adherents to the United Nations declaration, having won the victory over Japan to which they, but not Russia, then pledged their full resources, are about to make peace. They do so on terms which are open to all the others. They seek no special advantage

[1] BULLETIN of May 28, 1951, p. 856.
[2] *Ibid.*, p. 852.
[3] BULLETIN of July 23, 1951, p. 143.

966176—51——3

to themselves. If a few of the many do not care now to make peace, that is their responsibility. It will be those few who fragmentize the peace.

IV

Charge: The treaty was drawn up without the participation of Communist China, although "it is perfectly obvious that without the participation of the Chinese People's Republic in the work of preparing the peace treaty with Japan, a real peace settlement in the Far East is not possible."

Answer: The treaty has been drawn up with careful regard for the interests of China. The Nationalist Government has made many constructive suggestions which have been adopted. The so-called "Central People's Government" has, through the Soviet Union, been supplied with successive treaty drafts and has from time to time made public its views. These, however, have never presented a distinctive Chinese viewpoint. As stated in the note of Chou En-lai of May 22, 1951:

"After careful study of the Soviet Government's views on the United States draft peace treaty with Japan, the Central People's Government of the People's Republic of China considers that the Soviet Government's views completely correspond with those of the Central People's Government of the People's Republic of China."

It is not true that a "real" peace in the Far East is impossible without the participation of the Communists' regime. Some, indeed would doubt that a "real" peace is possible if there is participation by a regime which the United Nations has found to be aggressor. It is true that there cannot be a "total" peace without the participation of a Chinese Government which is peacefully disposed and which has both legitimacy and power to bind all China by its ratification. Since, however, that "total" peace is not now possible, it is better to proceed, conserving every Chinese right, and giving Japan the very large measure of peace which is now possible.

V

Charge: The treaty not only fails to contain any guarantee against a revival of Japanese aggression, but fails to place any limit upon the size of Japan's future armed forces, as was done in the Italian Peace Treaty.

Answer: The Japanese peace treaty solemnly binds Japan not to use force against any other state. If treaty obligations are dependable, this is enough. If they are not dependable, why multiply them? Also, by the new Japanese Constitution "the Japanese people forever renounce war as a sovereign right of the Nation and the threat or use of force as means of settling international disputes."

Furthermore, it is contemplated that there will be a series of collective security arrangements for the Western Pacific, including Japan, which will as a practical matter, assure that Japan will not possess, for its own national account, armament which could be an offensive threat.

VI

Charge: The treaty says that Formosa and the Pescadores are to be taken from Japan, but does not specifically say that they are to go back to "China," as (according to Moscow) the Cairo Declaration promised they would. Likewise, the treaty states that Southern Sakhalin and the Kurile Islands are to be detached from Japan, but does not state, as previously promised by the United States, that these territories should be handed over to the Soviet Union.

Answer: The treaty does not repeat the Cairo Declaration, which, it should be recalled, dealt not only with Formosa but with the return to China of Manchuria and with the freedom of Korea. The Soviet Union reacted violently to the suggestion that the Manchurian part of the declaration be written into the Japanese peace treaty.

As regards Formosa, the differences of opinion are such that it could not be definitively dealt with by a Japanese peace treaty to which the Allied powers, as a whole, are parties. Therefore, the treaty merely takes Japan formally out of the Formosa picture, leaving the position otherwise unchanged.

As regards South Sakhalin and the Kurile Islands, the treaty carries out the provisions of the Potsdam surrender terms, the only agreement by which Japan and the Allied powers as a whole are bound. So long as other Governments have rights under the Yalta Agreement which the Soviet Union has not fulfilled, there is at least question as to whether the Soviet Union can, with "clean hands," demand fulfillment of the parts of that agreement it likes.

VII

Charge: The United States, in opposition to its international commitments, is "restoring Japanese militarism," expanding Japan's military bases, recreating a Japanese land army and Japanese naval and air fleets, restoring and expanding the work of former Japanese military arsenals, freeing Japanese war criminals, restoring Japanese military organizations and "more and more promoting propaganda of war."

Answer: The allegations as to restoring militarism in Japan are totally without factual basis. Japan has been so completely disarmed that it does not as yet have an adequate police force or coast guard of its own.

VIII

Charge: Despite United States wartime statements that the United States did not want any territorial acquisitions as a result of the war, the United States is planning to maintain military bases in Japan after the war, in contravention of the Potsdam Agreement, and is, without justification, planning to maintain United States control over the Ryukyu, Bonin, Rozario, Volcano, Pares Vela and Marcus Islands.

Answer: The United States has told Japan that it is prepared provisionally to station some armed forces in Japan at Japan's request so that, on the

coming into force of the peace treaty, Japan will not be a total vacuum of power. The arrangement would, in essence, be comparable to those between other free countries which want to combine forces and facilities for the purposes of collective security. Such arrangements constitute an exercise of sovereignty, not a derogation of sovereignty.

As regards the Ryukyus and Bonin Islands, the treaty establishes substantially the same formula as that adopted for the Japanese mandated islands, namely U. N. trusteeship with the United States as administering authority. The Soviet Union voted for that in the case of the Japanese mandated islands. It did not consider that that involved a violation of Potsdam or "territorial aggrandizement" in violation of the Atlantic Charter. This charge can be made with even less force against the Ryukyus and Bonin treaty formula, for under it residual sovereignty remains in Japan, which was not the case with the mandated islands.

IX

Charge: The treaty deprives Japan of the opportunity of engaging in free and normal trade with Communist China, and denies reparations to states damaged by the Japanese during the war, although the United States has been taking reparations of its own out of Japan for six years.

Answer: The treaty imposes no limitation or disabilities whatever upon Japan's future trade and Japan's economy. Whatever limitations may hereafter result will be due to circumstances which affect world trade generally, not to treaty disabilities. The treaty provides for reparation in kind to states damaged by the Japanese during the war.

As regards the alleged taking of reparations by the United States, the true fact is that, since the surrender, the United States, as occupying power, has put up 2 billion dollars for economic relief of Japan. That amount is the measure of the difference between the cost of Japan's food and raw material imports and the value of Japanese exports during the occupation period.

United States and Japan Sign Security Treaty

[Released to the press by the U.S. delegation to the conference for conclusion and signature of Treaty of Peace with Japan, September 8]

The Governments of the United States and Japan signed a bilateral security treaty on September 8 at the presidio in a brief ceremony.

The treaty was signed for Japan by Prime Minister Shigeru Yoshida and for the United States by Secretary Acheson, Ambassador John Foster Dulles, Senator Alexander Wiley, and Senator Styles Bridges.

The United States delegation, in addition to the four members who signed the treaty, included the following alternate delegates: Senators John J. Sparkman and H. Alexander Smith, and Representatives Dewey Short and Overton Brooks.

STATEMENTS MADE AT SIGNING CEREMONY

Secretary Acheson

With regard to the Security Treaty we are gathered here to sign, there are several points I should like to emphasize:

First, this treaty of security between the United States and Japan is part of a pattern for defense of peace in the Pacific area. Taken together with the Mutual Defense Treaty between the United States and the Philippines, the Tripartite Security Pact between Australia, New Zealand, and the United States, and the Japanese peace treaty which was signed this morning, this action adds another link to the chain of security against aggression in a most important part of the world. These treaties constitute, in the words of President Truman, "natural initial steps in the consolidation of peace" in the Pacific area.

The signing of this Security Treaty today marks the conclusion of 10 days of historic importance to free peoples all over the world.

Second, the present treaty takes its place as a part—and an important part—of the system of security which has been developed within the framework of the United Nations Charter. The treaty is not only conceived within the spirit of the charter; it is a fulfillment of the inherent right of